

PART 1

INFORMATION FOR DRIVERS & VEHICLE OWNERS

CHAPTER 1 / DRIVER LICENSES

You must have a valid driver license to drive legally in New York State. If you reside in and hold a valid license from another state or nation, you can drive legally in New York State. However, even if you are licensed somewhere else, people under age 16 cannot drive in New York State.

Drivers who have moved here must turn in their out-of-state driver license and get a New York license within 30 days of becoming a permanent resident. In most cases, it is illegal to hold a New York driver license and a driver license from another state at the same time. It is also a violation of Federal and state law to hold more than one commercial driver license (CDL).

It is a crime to alter or forge any motor vehicle document, including a driver license. This may cause suspension or revocation of the driver license and criminal prosecution resulting in a fine or imprisonment.

TYPES OF LICENSES

New York State recognizes six types of non-commercial driver licenses. The information in this chapter applies to passenger car and motorcycle licenses. Information about commercial driver licenses (CDL's) can be found in the Commercial Driver's Manual (CDL-10). This is available from the DMV website (search under Forms) or at any motor vehicle office. You must have a CDL if you drive any vehicle that:

- Has a manufacturer's gross vehicle weight rating (GVWR) of more than 26,000 pounds (11,794 kg); or
- Has a gross combination weight rating (GCWR) of more than 26,000 pounds (11,794 kg), including any towed unit with a GVWR of more than 10,000 pounds (4,536 kg); or,

- Is made or used to carry 15 or more persons, in addition to the driver; or,
- Regardless of seating capacity, is defined as a bus by Article 19-A of the Vehicle and Traffic Law (including vehicles that carry school children or disabled people); or,
- Carries hazardous materials required by federal law to contain a placard.

The non-commercial driver licenses in this manual are:

Operator, Class D - Minimum age is 18, or age 17 with a driver education Certificate of Completion (see Driver Education later in this chapter). Allows you to drive a vehicle with a manufacturer's gross vehicle weight rating (GVWR) of 26,000 pounds (11,794 kg) or less; to tow a vehicle with a GVWR of 10,000 pounds (4,536 kg) or less; or tow a vehicle of more than 10,000 pounds if the gross combination weight rating (GCWR) of the two vehicles together is no more than 26,000 pounds (11,794 kg). You can also operate Class B and C mopeds with this driver license.

Junior Operator, Class DJ - Minimum age is 16. Allows you to drive a vehicle with a GVWR of 10,000 pounds (4,536 kg) or less, and tow a vehicle of 3,000 pounds (1,361 kg) or less. You can also operate Class B and C mopeds with this driver license. Please note you are limited with where, when, and with whom you can drive – please refer to the section of this manual labelled “Junior Operator Restrictions” found later in this chapter.

Non-CDL Class C - Minimum age is 18. Allows you to drive some vehicles with a GVWR of 26,000 pounds or less, or to tow a vehicle with a GVWR of 10,000 pounds or less providing the GCWR is not more than 26,000 pounds (11,794 kg) where no CDL endorsement is required.

Taxi/Livery, Class E - Minimum age is 18. Allows you to drive the same vehicles as a Class